

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sara Asselman	Team: Squad #04	CCRB Case #: 202206671	☒ Force	☒ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 10/05/2022 3:30 AM, Tuesday, 03/21/2023 11:40 AM	Location of Incident: Sutphin Boulevard subway station- F train (located Sutphin Boulevard and Hillside Avenue)	18 Mo. SOL 4/5/2024	Precinct: 103		
Date/Time CV Reported Wed, 10/05/2022 9:21 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Wed, 10/05/2022 9:21 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Ikenna Akobundu	20076	936107	TD 20
2. PO Luis Franco	19370	965109	TD 20

Officer(s)	Allegation	Investigator Recommendation
A . PO Ikenna Akobundu	Discourtesy: Police Officer Ikenna Akobundu spoke discourteously to § 87(2)(b)	A . Unfounded
B . PO Ikenna Akobundu	Abuse: Police Officer Ikenna Akobundu interfered with § 87(2)(b) use of a recording device.	B . Substantiated
C . PO Ikenna Akobundu	Force: Police Officer Ikenna Akobundu used physical force against § 87(2)(b)	C . Substantiated
D . PO Ikenna Akobundu	Abuse: Police Officer Ikenna Akobundu damaged § 87(2)(b) property.	D . Unable to Determine
E . PO Luis Franco	Force: Police Officer Luis Franco used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Ikenna Akobundu	Force: Police Officer Ikenna Akobundu used physical force against § 87(2)(b)	F . Within NYPD Guidelines
G . PO Ikenna Akobundu	Untruthful Stmt.: Police Officer Ikenna Akobundu provided a false official statement to the CCRB.	G . Substantiated
§ 87(2)(g), § 87(4-b)		

Case Summary

On October 5, 2022, § 87(2)(b) filed this complaint with the CCRB by phone.

On October 5, 2022, at approximately 3:30am, PO Ikenna Akobundu and PO Luis Franco, from Transit District 20, approached § 87(2)(b) who was on a bench inside the Sutphin Boulevard F-train subway station in Queens. § 87(2)(b) began recording them with his cellphone. PO Akobundu told § 87(2)(b) to get on the next train and leave the station. PO Akobundu said, “Fuck that, you got to get out of here.” (**Allegation A: Discourtesy, Unfounded**) PO Akobundu then hit § 87(2)(b) hand, where he was holding his phone (**Allegation B: Abuse of Authority, Substantiated**) (**Allegation C: Force, Substantiated**) causing his phone to fall to the ground and break (**Allegation D: Abuse of Authority, Unable to Determine**). PO Akobundu and PO Franco pushed § 87(2)(b) off the bench and escorted him out of the station (**Allegations E and F: Force, Within NYPD Guidelines**).

On March 21, 2023, PO Akobundu made a false official statement to the CCRB (**Allegation G: Untruthful Statement, Substantiated**).

§ 87(2)(g), § 87(4-b)

This incident did not result in any arrests or summonses.

The CCRB obtained Body-Worn Camera (BWC) footage of this incident (Board Review 01, 02, 03). The CCRB also obtained security camera footage from the MTA, however none of the cameras captured this incident (Board Review 04).

Findings and Recommendations

Allegation (A) Discourtesy: Police Officer Ikenna Akobundu spoke discourteously to § 87(2)(b).

Allegation (B) Abuse of Authority: Police Officer Ikenna Akobundu interfered with § 87(2)(b) use of a recording device.

Allegation (C) Force: Police Officer Ikenna Akobundu used physical force against § 87(2)(b).

Allegation (D) Abuse of Authority: Police Officer Ikenna Akobundu damaged § 87(2)(b) property.

The CCRB did not obtain a statement from § 87(2)(b) who was unhoused at the time of this incident, beyond the narrative he provided while filing this complaint (Board Review 05 and Board Review 06). § 87(2)(b) reported that on October 5, 2022, at approximately 3:30am, he began recording PO Akobundu and PO Franco on his phone, who had previously told him not to lie down on a bench inside the Sutphin Boulevard subway station. PO Akobundu said, “You’re getting on the next train,” and, “Fuck that, you got to get out of here.” PO Akobundu “smacked” § 87(2)(b) phone out of his hand and stepped on it, causing it to break.

In BWC footage recorded by PO Akobundu (Board Review 01, 02), at the 01:00 mark, he approaches § 87(2)(b) who is sitting upright on a bench and has a suitcase placed next to him. § 87(2)(b) is holding a phone in PO Akobundu’s direction. PO Akobundu tells § 87(2)(b) that he has to leave the station on the next train. § 87(2)(b) does not respond and continues to point his phone camera in PO Akobundu’s direction. PO Franco says, “You are leaving in two minutes.” He tells § 87(2)(b) that he is to leave on the next train again, and that he could continue recording. This conversation ends at 01:56. There is no interaction between § 87(2)(b) and the officers from 01:56 to

02:32. At 02:32, PO Akobundu says, “As a matter of fact, grab your stuff and go. Grab your stuff and let’s go.” He raises his voice and repeats his command. § 87(2)(b) does not respond. PO Akobundu says, “Are you going to move, or no?” He then says, “Sir, move your stuff now.” At a frame-by-frame speed, at 03:03, PO Akobundu’s right hand moves in a swiping motion from left to right, hitting § 87(2)(b) left hand, where he is holding his phone. The phone is flung away from § 87(2)(b) hand, falling to the ground, bouncing a few times before landing face up. This video does not depict PO Akobundu saying, “Fuck that, you got to get out of here.”

The BWC footage recorded by PO Franco (Board Review 01, 03) depicts an alternate angle of PO Akobundu’s. From 02:47 to 02:49, frame-by-frame, while standing to the right of § 87(2)(b) who is still sitting on the far-right end of the bench and holding his phone upright, PO Akobundu swings his right arm, from left to right, with palm open and facing the ground. His arm specifically swings away from where § 87(2)(b) is sat, in the opposite direction of § 87(2)(b) body. PO Akobundu’s hand strikes § 87(2)(b) left hand, causing his phone to fall to the ground. This video does not depict PO Akobundu saying, “Fuck that, you got to get out of here.”

PO Akobundu testified that prior to this incident, he and PO Franco saw § 87(2)(b) laying down on the bench inside the subway station (Board Review 07). He told him it was a violation and instructed him to sit up. At approximately 3:30am, PO Akobundu walked by § 87(2)(b) again and saw him laying down. He quickly sat up and began to film the officers with his cellphone. PO Akobundu told § 87(2)(b) that he had seen him lying down earlier, and to either leave the station or get on the next train. PO Akobundu saw on the station monitors that the next train was due in two minutes; however, he determined that the train was delayed and decided to eject § 87(2)(b) from the station. He and PO Franco instructed § 87(2)(b) to take his belongings and leave multiple times. § 87(2)(b) did not move or say anything to the officers. PO Akobundu reached for his bag and § 87(2)(b) leaned forward against it. PO Akobundu then reached for § 87(2)(b) right arm with his left hand. PO Akobundu’s hand collided with § 87(2)(b) phone, and it fell to the ground. PO Akobundu denied intentionally blocking § 87(2)(b) from recording him and maintained his statement after being shown PO Franco’s BWC footage. He did not recall seeing any damage done to the cellphone. He denied saying, “Fuck that you got to get out of here,” to § 87(2)(b). At no point did PO Akobundu feel that § 87(2)(b) represented a threat to his, PO Franco’s, or other civilians’ safety.

PO Franco’s testimony was materially similar to PO Akobundu’s (Board Review 08). He added that while PO Akobundu tried to reach for § 87(2)(b) hand, his phone fell to the ground. PO Franco did not see how PO Akobundu did this because he was focused on his own actions. He did not observe any damage on § 87(2)(b) phone and did not hear PO Akobundu say, “Fuck that you got to get out of here.” Other than being outstretched on the bench, PO Franco did not observe § 87(2)(b) commit any other subway rule violations. He did not feel that § 87(2)(b) represented a threat to his and his partner’s safety.

§ 87(2)(g)

It is therefore recommended that **Allegation A** be **Unfounded**.

Patrol Guide Procedure 203-29 prohibits members of service from attempting to “Intentionally block or obstruct cameras or other recording devices when there is no legitimate law enforcement reason to do so.” (Board Review 09)

Patrol Guide Procedure 221-01 provides members of services with eleven criteria to consider when deciding whether the use of force is reasonable, including the nature and severity of the crime and

immediacy of the perceived threat or harm to the subject, members of the service, and/or bystanders (Board Review 10).

§ 87(2)(g)

The BWC footage recorded by PO Franco shows that PO Akobundu reached towards § 87(2)(b) with his right hand, and swung it away from § 87(2)(b) arm, not towards it § 87(2)(g)

It is therefore recommended that **Allegations B and C be Substantiated.**

The BWC footage obtained by CCRB does not clearly depict whether any damage was caused to § 87(2)(b) cellphone during this incident. § 87(2)(g)

It is therefore recommended that **Allegation D be closed at Unable to Determine.**

Allegation (E) Force: Police Officer Luis Franco used physical force against § 87(2)(b)

Allegation (F) Force: Police Officer Ikenna Akobundu used physical force against § 87(2)(b)

While filing this complaint, § 87(2)(b) noted that PO Akobundu and PO Franco “grabbed” and “manhandled” him.

In BWC footage recorded by PO Akobundu, he instructs § 87(2)(b) to exit the station or remove his belongings approximately seven times before making any physical contact with him. At 03:05, he grabs § 87(2)(b) right arm, near the elbow, with both hands. The camera falls to the ground and the image is obstructed. At 03:23, when the camera is recovered, PO Franco is standing behind § 87(2)(b) and gripping his right upper arm with his right hand. This footage does not depict additional physical contact between § 87(2)(b) PO Akobundu and PO Franco.

In PO Franco’s BWC footage, at 02:49, PO Akobundu grasps § 87(2)(b) right arm with both hands, and PO Franco grasps his left. PO Franco’s hands remain in the same position, near § 87(2)(b) left elbow and shoulder, until 02:59. PO Franco continues holding § 87(2)(b) near the elbow, and clutches his jacket at the back, with his right hand. At 03:00 he grips § 87(2)(b) right upper arm with his right hand. At 03:10 PO Franco lets go and neither he nor PO Akobundu make any further physical contact with § 87(2)(b)

PO Akobundu testified that because § 87(2)(b) failed to comply with commands to leave the station, he reached for his arms to guide him out of the station. PO Akobundu picked up § 87(2)(b) phone, returned it to him and did not have further physical contact with him.

PO Franco testified that § 87(2)(b) was instructed to leave the station approximately five or six times before he grabbed him on the left arm near the elbow and shoulder, with the purpose of guiding him off the bench and out of the subway station. After § 87(2)(b) phone fell to the ground and PO Akobundu returned it to him, § 87(2)(b) said he would leave the station on his own and PO Franco let him go. PO Franco did not make any further physical contact with § 87(2)(b)

MTA Rules of Conduct state that, “Riders may not lie down or place feet on the seat of a train, bus or platform bench or occupy more than one seat.” (Board Review 11)

Patrol Guide Procedure 221-02 defines passive resistance as “Minimal physical action to prevent a member from performing their lawful duty.” It provides as an example the failure to “comply with a lawful command.” Further, it states the officers should use “no more than the reasonable force necessary to gain control.” (Board Review 12)

§ 87(2)(g)

It is therefore recommended that **Allegations E and F** be closed as **Within NYPD Guidelines**.

Allegation (G) Untruthful Statement: Police Officer Ikenna Akobundu provided a false official statement to the CCRB.

In a frame-by-frame review of PO Franco’s BWC at 02:47, PO Akobundu is seen using his right hand to hit § 87(2)(b) left hand, causing his cellphone to be flung to the ground. His right arm is depicted moving in a swinging or swiping motion, in the direction away from § 87(2)(b) entire body.

On March 31, 2023, while providing a statement to CCRB regarding this complaint, specifically at the 25:00-mark of the audio recording of his interview, PO Akobundu denied intentionally hitting § 87(2)(b) hand and causing his phone to fall. At 28:39, he stated that the phone fell because PO Akobundu tried to reach towards § 87(2)(b) arm; that it was an accident. At the 34:00-mark of his interview recording, PO Akobundu was presented with PO Franco’s BWC footage, in real-time, then frame-by-frame, from the 2:15 timestamp. At the 42:20-mark of this interview recording, PO Akobundu maintained that his own right hand swiped § 87(2)(b) phone out of his left hand as PO Akobundu was reaching for his right arm. He did not make any amendments to his statement.

Patrol Guide Procedure 304-10 prohibits members of service from “intentionally making a false official statement,” which it defines as “an intentional statement that a member of the service knows to be untrue, which is material to the outcome of an investigation.” (Board Review 13)

§ 87(2)(g)

it is therefore recommended that **Allegation G** be **Substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- § 87(2)(b) [REDACTED]
[REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
 - [REDACTED]
- PO Ikenna Akobundu has been a member of service for eighteen years and has been a subject in two CCRB complaints and eight allegations, none of which were substantiated. § 87(2)(g) [REDACTED]
- PO Luis Franco has been a member of service for five years and has been a subject in one CCRB complaint and six allegations, none of which were substantiated. § 87(2)(g) [REDACTED]

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 24, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this incident (Board Review 19).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad: #4

Investigator:	<u>Sara Asselman</u> Signature	<u>Inv. Sara Asselman</u> Print Title & Name	<u>05/16/2023</u> Date
Squad Leader:	<u>Raquel Velasquez</u> Signature	<u>IM Raquel Velasquez</u> Print Title & Name	<u>05/16/2023</u> Date
Reviewer:	<u></u> Signature	<u></u> Print Title & Name	<u></u> Date